



Policy: Responsible Use of Artificial Intelligence Tools

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Document Control Information

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DOCUMENT HISTORY

Document Version	Date	Summary of Change
1.0	June 2024	Initial Document
2.0	August 2025	Major Revision to align with current state of AI and recently released DoIT guidance/policy

Purpose

This policy supplements State of Maryland Artificial Intelligence (AI) Policy and Implementation Guidance as published by the Department of Information Technology (DoIT), and Maryland Executive Order 01.01.2024.02. In particular, the Maryland State Department of Education (MSDE) adheres to the guiding principles provided for AI use.

This policy outlines the MSDE’s approach to the secure, legal, fair, and accountable procurement and use of AI systems. Our goal is to leverage AI to enhance our work while protecting students, staff, and the public from unnecessary risks. This policy applies to all MSDE employees, contractors, and partners who use AI systems with MSDE data or on MSDE systems.

Use of AI Systems within MSDE

All use of AI systems in MSDE or adoption of AI features in existing tools must be reviewed and approved by both MSDE and DoIT. MSDE will periodically review and affirm the security, privacy, and accessibility of these systems in accordance with applicable state and agency IT policies..

DoIT approval does not constitute MSDE authorization. MSDE IT must evaluate specific use cases and data handling requirements separately. Significant changes to approved use cases require additional review.

Approved tools must be documented and provided annually to DoIT as required by the State for the AI inventory. MSDE's submitted inventory must include all tools which use AI to perform MSDE business or process data, regardless of the cost of the tool or its inclusion within another tool.

The MSDE CIO serves as the **AI Lead** as per DoIT AI Implementation Guidance and delegates IT staff to assure all parts of this role are fulfilled by MSDE. MSDE divisional and programmatic staff employing AI must inform MSDE IT promptly of their intention to use such a system and provide regular status updates.

This document will not and cannot be wholly inclusive. Artificial Intelligence is a changing field, and every possible circumstance cannot be examined. MSDE employees, contractors, and affiliates are expected to follow both the spirit and letter of this guidance. Please reach out to the MSDE IT Branch with any questions or as soon as you begin to consider using any AI-based tool for MSDE business.

Use of Generative AI Systems

Generative AI systems are increasingly used in government operations.. Examples include commercial services such as ChatGPT, CoPilot, Claude, Gemini Applications such as Canva and Beautiful.ai incorporate AI capabilities for content generation. Generative AI systems are not limited to text, but can produce art, formatted documents and presentations, and other digital artifacts, as well as summarizing meetings and transcripts.

Staff may only use AI systems approved through MSDE and DoIT processes for agency operations; this prohibition includes tools that may be free, open source, or provided by a partner. Not all work can be performed with the assistance of an AI tool.

Please note: creating an account on an online tool with your Maryland.gov account and/or purchasing a tool on a credit card without going through the approval process does not make that tool an approved tool, a tool provided by MSDE or Maryland, or a permitted platform. These tools are unapproved and prohibited regardless of whether AI is in use.

Generative AI systems require human oversight. Technology enables our work; we are accountable for that work and for employing good judgement. The person using a tool is responsible for its use and the results, both intended and unintended and the implications using such technology has for the MSDE and Maryland residents.

MSDE Approval Process for New AI Systems

Start with your IT Partner who can help you smoothly work your way through this process.

1. Define Need: Identify the business need for a new AI tool.
2. Check Approved List: Verify if a suitable tool is already on the MSDE or state-approved (DoIT) list.
3. MSDE IT Review: If no approved tool exists, ask for an MSDE review
4. DoIT Review: If the internal review is successful, submit the tool for State review through Maryland DoIT's AI intake process.
5. Develop internal procedures for your unit
6. Approval, Implementation, Adoption: Upon successful completion of all reviews, the tool will be approved for use.

CUSTOMIZED TOOLS

Most AI systems will be software products or services or exist within another piece of software. There are cases where MSDE may want to build or include an MSDE-specific AI tool in a solution. Some Generative AI systems are available for private, more limited use where MSDE could define the data it learns from in order to make a tool specific to our services and compliant with policy.

Any unit considering developing or procuring an AI chat bot, a tool for specific business process support, or similar to be trained on your department's data, must consult with MSDE IT. Place a consultation request as soon as you are considering a tool of this type and do not wait until you are deep into the project.

Consultation with IT will ensure that your project proceeds with proper support and considerations for an effective outcome that also protects MSDE and resident data. IT will be able to discuss and provide advice regarding available options, and the applicability of tools you may be considering.

Please be aware that for the AI to produce desired results, the data it will learn from may need anything from basic refinement to a whole new structure and network security architecture. To address this, you will likely need to work with qualified professionals. The data work, as well as building and defining the AI tool, may take more time than you expect and will affect your overall project cost and timeline.

MSDE's Responsibilities in Using AI

AI NOTETAKING AND SUMMARIZATION

Having an AI "take notes" or summarize a meeting for you can be a timesaver, but this is not without its concerns:

- AI notetakers have notorious accuracy issues
- These tools cannot always accurately separate the salient points of a meeting from the routine conversation and may not highlight the important content

- Some meeting content is confidential, and it is not appropriate to use a summarization tool
- While transcription and automated notetaking are not considered “recording” by Maryland law, others may be uncomfortable with this use and should be considered

It is acceptable to use the native AI systems available from your Maryland online meeting accounts within Microsoft Teams (CoPilot), and Google Meet (Gemini) when logged into your Maryland.gov account. *Both Google and Microsoft have multiple tools available under the CoPilot and Gemini names – only those within the Maryland online environment and desktop applications may be used. If you are not sure, please reach out to your MSDE IT Partner.*

Other tools for meeting notes (such as otter.ai, Fireflies.ai, Fathom, tl;dv), and tools embedded in programs like Notion are not permitted. MSDE data cannot be stored outside MSDE/Maryland systems.

It is not permissible to use an AI tool of any kind to replace a person’s attendance at or participation in a required meeting.

EXAMPLES

Here are a few ideas of how one might use approved Generative AI systems. Please be aware that these examples are not inclusive, and everything you do must align with State guidance. You are responsible for the way you use these tools as a member of MSDE.

Permitted

- Using an approved AI tool to produce meeting notes
 - These need to be reviewed by an attendee for accuracy and clarity
- Drafting reports, summaries, or non-confidential content
 - Final versions need to be closely reviewed by the appropriate MSDE personnel
- Rewriting content to a different reading level or to align with “plain language” initiatives
- Changing the formatting or organization of data
- Analyzing public or aggregated data
 - To analyze non-public data, additional review will be needed on the tool and it’s approved use, including assuring the appropriate protection of the data
- Using an approved tool to speed data processing and providing resident services
 - Human reviews for accuracy need to be part of unit SOPs
 - No final determinations about awards, funding, eligibility, legality, compliance, disciplinary actions, or any other policy or program decision-making may be performed by an AI.
- Create a form or survey
- Using an AI tool to assist your research on a topic
 - Research will have to be verified for accuracy
- Summarizing extensive informative documents

Prohibited

Based on the guidance outlined in Maryland State policy and AI guidance, the following are prohibited AI uses in MSDE. Depending on the use, any of these may be illegal or subject to disciplinary measures.

- Providing student or staff mental or emotional care services with an AI tool
- Making any determinations regarding HR, legal or compliance decisions, providing resident services, or making partnerships. Any significant or person-affection decisions should be made by humans.
- Using data in ways not approved or in violation of data sharing agreements or the terms of use of any given data collection system
- Using any protected or restricted data without specific approval to use it with the particular AI system.
- Doing “social scoring” of individuals or any other analysis which may bring bias into the analysis.
- Using AI to impersonate, defame, or harass anyone or to create misleading information or content.
- Using any unapproved tool for MSDE work.

RISK AWARENESS**Bias**

AI systems may exhibit algorithmic bias that requires mitigation. Experts are concerned about how using inherently biased training data in a statistically centered model will amplify and reinforce systemic biases and increase levels of inaccuracy with edge cases. Text-based tools can be problematic, but the largest concerns are aimed at image-based tools which are said to reinforce visual and racial stereotypes.

MSDE staff and partners using AI must be aware of this and review any results produced by an AI tool for ways to identify distorted information, reduce or eliminate inherent bias, and to train any internal tools in a way that promotes fairness and the support of all Maryland learners.

Intellectual Property Use/Ownership

Because both text- and image/video-based Generative AI systems are often trained on large data sets the models do not know what information is copyrighted, trademarked, or the work of an artist or content producer. These tools will also use this data in combination with other sources to produce “new” content without attribution, royalties, or consideration for fair use.

Using AI systems to generate code can be very effective, but this too has been controversial as the Generative AI systems do not abide by the license terms of the code they have learned from.

MSDE must respect appropriate intellectual property use and avoid using AI systems in situations where plagiarism may be an unintended outcome.

PROTECTED, RESTRICTED, OR PERSONALLY IDENTIFYABLE DATA

Complete a Privacy Impact Assessment before using AI with these data. Prefer aggregated or de-identified data, include AI clauses in contracts, and never train AI with student data unless approved.

Please follow the MSDE and DoIT Data Classification Policies

INCIDENT RESPONSE

If AI causes an issue, such as a data breach, publication of biased or inaccurate content, or a system failure, staff must immediately:

- Stop using the tool.
- Report the incident to the appropriate IT Partner and the MSDE CISO
- Assist with containing and investigating the issue.
- Support remediation efforts and ensure all actions are documented.

SECURITY STANDARDS ALIGNMENT

All AI systems must align with Maryland (DoIT) and MSDE Security policies.

ACCESSIBILITY

AI systems must align with federal accessibility guidelines under section 508, as well as all applicable Maryland and MSDE laws, regulations and policies.